

GSA - LIMITED SOURCE JUSTIFICATION

1. Identification of Agency and Contracting Activity

This is a Limited Source Justification. The requiring activity is J1 Operations Directorate of United States Indo-Pacific Command (USINDOPACOM); the contracting activity is NAVSUP Fleet Logistics Center Pearl Harbor (FLCPH).

2. Nature and/or Description of the Action Being Approved

This acquisition is conducted under the authority of the Multiple Award Schedule Program (Title 41 U.S.C. 152 (3) and Title 40 U.S.C. 501, Services for Executive Agencies). This is a limited source action to be awarded thru GSA eBuy under FSS Contract Number 47QSMA24D08N9 Contract Furnishers of Hawaii, Inc. (dba Office Pavilion) a Woman-Owned Small Business (WOSB) identified in paragraph 3 below. The placement of a firm fixed price order is anticipated.

3. Description of Supplies/Services to Meet the Agency's Needs Including Estimated Value

USINDOPACOM J1 Operations Directorate, requires the procurement of new furniture to accommodate an additional fourteen (14) new workstations for a total of fifty-five (55) workstations, modular walls and other applicable components to be delivered, reconfigured, and installed in Building 700, Room 321 to conduct daily business and maintain mission capability across the Asia-Pacific Region. The requirement will also include ancillary services of dismantling, disposing of existing workstations and modular walls in Room 321. USINDOPACOM will utilize their inventory excess furniture components of brand, Herman Miller Ethospace System, to complete full reconfiguration in accordance with USINDOPACOM instruction 0611.7, Procurement of Furniture, Furnishings and Other Appliances.

This a new requirement with an estimated total of \$613,964.39. The resultant contract will include an anticipated delivery date of 30 November 2025.

Is the requested material or service represents the minimum requirements of the Government Estimated Dollar?

Estimated Dollar Value:

FY/Option/Ordering Period	OM&N	OPN	RDT&E
FY25	613,964.39	0.00	0.00
Subtotals	613,964.39	0.00	0.00
Total			613,964.39

4. Statutory Authority Permitting Other Than Full and Open Competition

41 U.S.C. 251 as implemented by FAR 8.405-6(a)(1)(i)(B) Only One Source Capable

Additional Information Regarding Statutory Authority if Applicable

N/A

5. Rationale Justifying Use of Cited Statutory Authority

The initial USINDOPACOM Headquarter furnishing project requirements were procured through full and open competition and awarded to Contract Furnishers of Hawaii, Inc. for Herman Miller, Krug, and Environamics brand furniture in 2004. In accordance with USINDOPACOM instruction 0611.7 paragraph 1.2.(b), furniture within Nimitz-McArthur Pacific Command Center (NMPCC) and other command occupied spaces, the primary utilization of Herman-Miller Ethospace workstations, Krug products, Steel Case, and Aeron chair, DIRTТ manufactured partition walls, and other peripheral items and stand-alone pieces. Changes in existing furniture configurations or space allocations will be accommodated by using system furniture pieces from current command inventory if available, to minimize expenses and still maintain uniformity throughout the building. In accordance with USINDOPACOM instruction 0611.7, furniture layouts, type, design, and color pallets are standard throughout NMPCC and are not to be changed or replaced without the Headquarters Commandant (J02HQ) and Chief of Staff (J02) written approval. Therefore, USINDOPACOM J1 is seeking to maintain uniformity by purchasing same brand and style furniture in their procurement for workstations in accordance with original procurement procedures established by USINDOPACOM instructions.

A key aspect of this specific USINDOPACOM J1 requirement is the plan to re-utilize portions of the on-hand Herman Miller Ethospace tiles, wood top caps and trims, and frames to minimize project costs. The estimated value of spare parts on hand that will be re-utilized in this project amount to approximately \$150,000. Other manufacturers cannot meet the seamless integration of spare Herman Miller furniture components with new Ethospace systems in order to complete the full reconfiguration of workstations. Utilizing Government-owned furniture components is a cost-effective method and provides the ability to interchange furniture within other rooms/office spaces that are outfitted with the existing Herman Miller Ethospace System. Thus, providing a uniform aesthetic throughout the four-star command building. Any deviation from this furniture manufacturer will have negative repercussions when/if any reconfigurations are necessary concerning configurations, compatibility, functionality, structure, finish and colors creating cost prohibitive scenarios for the Government and negatively affecting the USINDOPACOM J1 mission. No other furniture manufacturer will meet the Government's requirements of functionality and compatibility with the existing Herman Miller, Ethospace furniture and satisfy the uniformity requirements of USINDOPACOM instruction 0611.7.

Contract Furnishers of Hawaii, Inc. dba Office Pavilion is the only authorized dealer of Herman Miller, Ethospace furniture in Hawaii and the Pacific Rim that provides authorized warranty support. The warranty support includes Herman Miller’s 12-year, 3-shift warranty of parts and labor. Contract Finishers of Hawaii maintains an extensive stock of parts in their warehouse and in their fleet of five vans. This provides Contract Furnishers of Hawaii the capability to provide repairs during regular business hours on a daily basis. Contract Finishers of Hawaii is able to deliver, install, and complete the reconfiguration of the newly created J1 office space by 30 November 2025. Therefore, Contract Furnishers of Hawaii, Inc. perform the additional work would provide a single furniture point of contact for purchasing, coordination, re-utilization, and installation of furniture. This continuity of effort would reliably support a successfully phased installation into the office space and limit USINDOPACOM J1 downtime.

Additional information/any other facts supporting the use of limited source(s) including a demonstration of the proposed contractor's unique qualifications to provide the required supply or service

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable, including a Description of Market Research conducted among schedule holders, the results, if applicable, and a List of Interested Sources, or a statement of the reason market research was not conducted.

The requiring activity and contracting activity have conducted market research among schedule holders. In accordance with FAR Part 10, the Contract Specialist reviewed numerous resources to include a search of mandatory sources, an Internet search (Google.com), GSA Advantage, and previously awarded contracts. Contract Furnishers of Hawaii is the only authorized dealer of Herman Miller Ethospace System products in the state of Hawaii, Guam and the protectorates of the American Samoa’s and, thus, the only capable source that meets the minimum need of this requirement. Market research findings indicate, historically, requirements of similar scope and complexity were successfully satisfied via issuance of a GSA order to Contract Furnishers of Hawaii, an SBA-Certified WOSB under GSA schedule 47QSMA24D08N9.

7. A Statement of the Actions, if any, the Agency May Take to Remove or Overcome Any Barriers that Led to the Restricted Consideration Before Any Subsequent Acquisition for the Supplies or Services is Made.

Based on the abovementioned, NAVSUP FLCPH does not intend to compete future contracts for the types of supplies/services covered by this document. NAVSUP FLCPH will continue to monitor the industry to determine if other office furniture systems of comparable quality and/or characteristics becomes available and, if another potential source emerges, NAVSUP FLCPH will continually assess whether competition for future requirements is feasible.

8. Determination of Best Value Consistent with FAR 8.404(d)

GSA has determined the prices of supplies, of the schedule contracts to be fair and reasonable for the purpose of establishing the schedule contract. However, ordering activities are responsible to make a separate determination of fair and reasonable pricing for individual orders, BPAs, and orders under BPAs. Per DFARS 8.404(d) (DEVIATION 2014-O0011), the Fleet Logistics Center Pearl Harbor Contracting Officer will determine prices to be fair and reasonable using the procedures in FAR 15.404-1 and will document such determination with a level of detail commensurate with the complexity and circumstances of the order.

9. Contracting Point of Contact

The point of contact at NAVSUP Fleet Logistics Center Pearl Harbor Regional Contracting Office

CERTIFICATIONS/APPROVALS:

TECHNICAL CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Exception to Fair Opportunity and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

Technical Cognizance

I certify that the facts and representations under my cognizance which are included in this Exception to Fair Opportunity and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

Requirements Cognizance

CONTRACTING OFFICER CERTIFICATION

I certify that this Exception to Fair Opportunity is accurate and complete to the best of my knowledge and belief. The Contracting Officer\\\\\\\\\\\\'s signature below represents approval of this document.

Contracting Officer's Signature

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LEVEL ABOVE CERTIFICATION

If a follow on to an order or BPA previously issued for the same supply or service based on a Justification citing the authority at FAR 8.405-6(a)(1)(i)(B) or (C), provide a copy of the previous justification. If the planned actions to remove barriers to future competition were not completed, the justification for the follow on action must be approved by the approval authority one-level above the approval authority for the previous justification.

Level Above the Contracting Officer

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

Legal Sufficiency Review

CONTRACTING ACTIVITY COMPETITION ADVOCATE REVIEW

Contracting Activity Approval

HEAD OF CONTRACTING ACTIVITY APPROVAL

Upon the basis of the above justification, I hereby approve, as Head of Contracting Activity, the solicitation of the proposed procurement described herein using other than full and open competition, pursuant to the authority of (Placeholder for US code citation)

HCA Approval